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Case Number: 20STCV04647 Hearing Date: August 31, 2026 Dept: 509

XCVI, LLC v. LACAUSA, et al.

MOTION TO AMEND JUDGMENT

MOVING PARTY: Judgment Creditor, XCVI, LLC

RESPONDING PARTY(S): Proposed Judgment Debtors ALJ Holdings LLC, Amber James Apparel LLC, BAGG LLC, BirdieBee Worldwide LLC, Generations Irrevocable Trust, Gredale LLC, Nexus Fulfillment Services, LLC, Perry & Co., LLC, Ten Underscores LLC, VT USA LLC, West Coast Home Brands LLC

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff XCVI, LLC brought this action against defendants LACAUSA, LLC (LACAUSA) and Greg Lorber (Lorber, collectively Defendants), alleging causes of action for (1) breach of contract – asset purchase agreement, (2) breach of contract – guaranty, (3) accounting, and (4) unfair business practices under Cal. Bus. & Prof. Code § 17200, et seq.

Plaintiff alleged that LACAUSA and XCVI, LLC entered into an asset purchase agreement (“APA”) on August 8, 2019. In connection with the APA, Lorber and XCVI, LLC entered into a guaranty (“Guaranty”) whereby Lorber guaranteed LACAUSA’s obligations under the APA, on August 8, 2019. Pursuant to the APA, LACAUSA was to pay XCVI, LLC a total of \$727,982.97 as follows: (1) \$250,000 for Trademarks, Domain Names, and Social Media Accounts at time of closing; (2) \$88,148.05 for Samples and Related Assets; and (3) \$389,834.92 for Inventory. Plaintiff alleged that Defendants had defaulted under the APA. This suit followed.

The matter proceeded to a jury trial starting December 11, 2023. On December 14, 2023, the jury returned a unanimous verdict in XCVI, LLC’s favor, awarding XCVI, LLC \$376,144.37 for Defendants’ contractual breach.

XCVI, LLC (Judgment Creditor) now moves to amend the judgment to add various judgment debtors, whom Judgment Creditor contends are alter egos of Lorber. Some proposed judgment debtors: ALJ Holdings LLC, Amber James Apparel LLC, BAGG LLC, BirdieBee Worldwide LLC, Generations Irrevocable Trust, Gredale LLC, Nexus Fulfillment Services, LLC, Perry & Co., LLC, Ten Underscores LLC, VT USA LLC, West Coast Home Brands LLC (Opposing Parties) opposed.

This action originally came to hearing on August 17, 2026. This Court continued this matter to allow the proposed judgment debtors to file an opposition with the Court.

The Court now rules considering the entirety of the record before it.

TENTATIVE RULING:

Judgment Creditor's Motion to Amend Judgment is DENIED.

Judgment Creditor is ordered to give notice to all interested parties.

DISCUSSION:

Motion to Amend Judgment

I. Request For Judicial Notice

Judgment Creditor requests judicial notice of Exhibits 1-76. Opposing Parties oppose the request for judicial notice. After considering the parties' respective arguments the Court GRANTS judicial notice of Exhibits 1-76.

II. Objections to Evidence

Opposing Parties submit objections to evidence. This court is unaware of any legal authority which requires a court to rule on evidentiary objections on a motion, except as to a motion for summary motion/adjudication (Code Civ. Pro. § 437c, subd. (q)) or a special motion to strike (Code Civ. Pro. § 425.16, subd. (b)(2)); see also, *Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 947-949.)

As such, this Court respectfully declines to rule on these objections. This Court is well aware of the rules of evidence, and to how much weight, if any, should be given to any of the proposed evidence.

III. Legal Standard

A court may amend a judgment to add additional judgment debtors. (Code Civ. Pro. § 187; *Wolf Metals Inc. v. Rand Pacific Sales, Inc.* (2016) 4 Cal.App.5th 698, 702.) This includes the authority to impose liability upon an alter ego. (*Highland Springs Conference & Training Center v. City of Banning* (2016) 244 Cal.App.4th 267, 280.) "It is an equitable procedure based on the theory that the court is not amending the judgment to add a new defendant but is merely inserting the correct name of the real defendant. [Citation]. The decision to grant an amendment lies in the sound discretion of the trial court. [Citation]. Great liberality is allowed in granting such amendments." (*Relentless Air Racing, LLC v. Airborne Turbine Ltd. P'ship* (2013) 222 Cal.App.4th 811, 815.)

In order to prevail in a motion to add judgment debtors, a creditor must show that "(1) the parties to be added as judgment debtors had control of the underlying litigation and were virtually represented in that proceeding; (2) there is such a unity of interest and ownership that the separate personalities of the entity and the owners no longer exist; and (3) an inequitable result will follow if the acts are treated as those of the entity alone." (*Relentless Air Racing, LLC*, supra, 222 Cal.App.4th at pp. 815-816.)

IV. Analysis

Judgment Creditor moves to add: ALJ Holdings, LLC; Amber James Apparel LLC; Bagg LLC dba Grey/Ven; Birdiebee Worldwide, LLC; Generations Re Ventures LLC; Gredale LLC; Gredale PPE Inc.; Nexus Fulfillment Services, LLC; Perry & Co., LLC; Prestige Worldwide Creative, LLC; Stop C-19, LLC; Ten Underscores LLC dba Intentionally Blank; The Jules Hartley Corporation; VT USA LLC dba Elle Footwear and DTLA Hub; West Coast Home Brands, LLC; Wonderland Worldwide LLC; and the Generations Irrevocable Trust, all of whom Judgment Creditor contends are alter egos of Lorber. [FN 1] (Not. of Mot.)

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1. Unity of Interest and Ownership

Alter ego “is an extreme remedy, sparingly used.” (*Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 539.) “The standards for the application of alter ego principles are high, and the imposition of [alter ego] liability ... is to be exercised reluctantly and cautiously.” (*Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 306.) Still, “[t]he greatest liberality is to be encouraged” in allowing judgments to be amended to add the “real defendant,” or alter ego of the original judgment debtor, “in order to see that justice is done.” (*Carr v. Barnabey’s Hotel Corp.* (1994) 23 Cal.App.4th 14, 20; *Greenspan v. LADT LLC* (2010) 191 Cal.App.4th 486, 508; *Wells Fargo Bank, N.A. v. Weinberg* (2014) 227 Cal.App.4th 1, 7.)

“Reverse veil piercing is a means of reaching the LLC’s assets, not the debtor’s transferable interest in the LLC.” (*Curci Investments, LLC v. Baldwin* (2017) 14 Cal.App.5th 214, 223.) “[T]he key is whether the ends of justice require disregarding the separate nature of [the entity] under the circumstances. (See *ibid.*) In making that determination, the trial court should, at minimum, evaluate the same factors as are employed in a traditional veil piercing case, as well as whether [judgment creditor] has any plain, speedy, and adequate remedy at law.” (*Id.* at p. 224.) A failure “to show that innocent creditors would be adequately protected” is a factor to consider in granting or denying relief. (*Postal Instant Press, Inc. v. Kaswa Corp.* (2008) 162 Cal.App.4th 1510, 1524, [discussing reverse piercing with respect to corporations.]

As an initial matter, Judgment Creditor fails to demonstrate the ownership of certain entities. Instead, Judgment Creditor relies heavily on the identity of managers of the LLC. The Court is aware a limited liability company is a member-managed limited liability company unless the articles of organization contain a statement to the opposite. (Corp. Code, §§17704.07, 17702.01.) However, all articles of incorporation presented are from LLCs incorporated in Nevada. Whether Nevada has such presumption is unexplored. However, as the motion may be denied on other grounds, the Court assumes the managers of the LLCs are the members of the LLCs for purposes of this motion.

The entities’ ownership interest is identified as follows:

ALJ Holdings LLC, Bagg LLC dba Grey/Ven, and Generations Re Ventures LLC, are owned by Lorber and Hirsch. (Kamish Decl. Exh. 5, 14; RJN Nos. 15, 16.)

Amber James Apparel LLC is owned by Generations Irrevocable Trust and Charleston May Irrevocable Trust. (RJN. Nos. 9-10.)

Birdiebee Worldwide is owned by Lorber and Kimberly Barth. (RJN. No. 13-14.)

Generations Irrevocable Trust has zero evidence demonstrating ownership interest as it appears the exhibits supporting Judgment Creditor's position were not included.

Gredale LLC, is owned by Lorber, Hirsch, and Scott Weisman. (Kamish Decl. Exh. 41-42; RJN No. 15.)

Gredale PPE Inc. has zero evidence demonstrating ownership interest. Indeed, the only evidence to support a judgment against Gredale PPE Inc. is that it once defaulted in an action where other entities defaulted. (Kamish Decl. Exh. 97-98.) This does not go towards ownership of the entity.

Nexus Fulfillment Services, LLC, is owned by Randy Palma. (Kamish Decl. Exh. 47-49.)

Perry & Co., LLC, is owned by Lorber, Hirsch, and Perry Paiste. (Kamish Decl. Exh. 52-55.)

Prestige Worldwide Creative, LLC is only addressed with filings in the U.S Trademark Office and does not have any evidence reliably support the entity's ownership interest. (Kamish Decl. Exs. 54-57.)

Stop C-19, LLC is owned by Lorber, Andrew Turk, and Paul Guez. (Kamish Decl. Exh. 60-64.)

Ten Underscores LLC dba Intentionally Blank is owned by Lorber, Hirsch, and Ty McBride. (RJN No. 28.)

The Jules Hartley Corporation's articles of incorporation do not demonstrate ownership of the shares of the corporation. (Kamish Decl. Exh. 68-69.)

VT USA LLC dba Elle Footwear and DTLA Hu is owned by Lorber, Hirsch, and Jack Betch. (RJN No. 31, 32.)

West Coast Home Brands LLC is owned by Lorber, Hirsch and Andrea Bernstein. (Kamish Decl. Exh. 78-79.)

Wonderland Worldwide LLC is owned by Loerber, Hirsch, Daniel Guez, and Andrew Cohen. (Kamish Decl. Exh. 80-83.)

In the end, the entities on which Judgment Creditor provides ownership information are owned by individuals not named in this action. Adding these entities as judgment debtors would strip those individuals' ownership interest even though they have nothing to do with this action. Judgment Creditor provides no equitable basis for interfering with their interests.

Further, Judgment Creditor has adequate remedies at law that do not disturb these individuals' rights. For example, Judgment Creditor has brought a separate collection action against, among other entities, Hirsch individually. (See Related Case, LASC No. 25STCV05597.) The disposition of that action would be an adequate remedy at law.

2. Control of the Underlying Litigation

Additionally, even if Judgment Creditor demonstrated a unity of interest, it must still demonstrate that proposed judgment debtors had a control of the underlying litigation and were virtually represented in that proceeding. (Relentless Air Racing, LLC, supra, 222 Cal.App.4th at p. 815-816.)

Judgment Creditor has not done so. Indeed, it relies solely on the notion that "Because Lorber and Hirsch owned, managed, controlled, or served as trustees for the Proposed Judgment Debtors, any litigation decisions made on behalf of Lacausa necessarily protected the interests of the Proposed Judgment Debtors as well. The interests of Lacausa and the Proposed Judgment Debtors were fully aligned throughout the litigation, and the Proposed Judgment Debtors" (Mot. at p. 17:2-7.) However, there really isn't adequate evidence that the proposed judgment debtors had any control or interest in the underlying litigation. There is nothing connecting these seemingly independent entities other than the fact that Lorber may have an ownership interest. Lorber's partial ownership stake does not automatically demonstrate that the proposed judgment debtors themselves controlled this action.

Accordingly, Judgment Creditor's Motion to add ALJ Holdings, LLC; Amber James Apparel LLC; Bagg LLC dba Grey/Ven; Birdiebee Worldwide, LLC; Generations Re Ventures LLC; Gredale LLC; Gredale PPE Inc.; Nexus Fulfillment Services, LLC; Perry & Co., LLC; Prestige Worldwide Creative, LLC; Stop C-19, LLC; Ten Underscores LLC dba Intentionally Blank; The Jules Hartley Corporation; VT USA LLC dba Elle Footwear and DTLA Hub; West Coast Home Brands, LLC; Wonderland Worldwide LLC; and the Generations Irrevocable Trust as Judgment Debtors is DENIED.

IT IS SO ORDERED.

Dated: August 31, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Judgment Creditor withdrew its request to add Lee Hirsch as a judgment debtor. (8/3/26 Notice of Withdrawal.)

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.